2022 Y L R 2067

[Lahore]

Before Faisal Zaman Khan, J

MUHAMMAD RAFIQUE---Petitioner

Versus

ADDITIONAL DISTRICT JUDGE SIALKOT and others---Respondents

Writ Petition No.250881 of 2018, heard on 1st December, 2021.

(a) Family Courts Act (XXXV of 1964)---

----S. 5, Sched.---Muslim Family Laws Ordinance (VIII of 1961), S. 10---Suit for recovery of dower---Deferred dower---Scope---Petitioner (husband) assailed judgments and decrees passed by courts below whereby respondent's (wife's) claim for recovery of dower amount was decreed---Contention of petitioner was that the marriage between the parties was still intact, therefore, the dower which was deferred in nature could not have been granted to the respondent---Validity---Prompt dower of the respondent was paid and deferred dower was also fixed regarding which no timeframe was given as to when it could be claimed by respondent---Deferred dower could only be paid to respondent either at the culmination of marriage or at the death of petitioner---Petitioner himself had admitted that he had divorced the respondent, as such, she was entitled to claim and recover the deferred dower---Constitutional petition was dismissed.

Saadia Usman and another v. Muhammad Usman Iqbal Jadoon 2009 SCMR 1458 ref.

(b) Muslim Family Laws Ordinance (VIII of 1961)---

----S. 10--- Dower--- Scope--- Prompt dower is paid on demand whereas the deferred dower is paid either on the dissolution of marriage or on the death of husband---If some timeframe is given in the Nikahnama with regard to the demand of deferred dower then wife can claim the same before the dissolution of marriage or death of husband. [p. 2069] B

Saadia Usman and another v. Muhammad Usman Iqbal Jadoon (2009 SCMR 1458 ref.

(c) Muslim Family Laws Ordinance (VIII of 1961)---

----S. 7--- Talaq (Divorce)--- Scope---Where husband had pronounced divorce during pregnancy of wife and the period of 90 days as contemplated in Muslim Family Laws Ordinance, 1961, had expired during the period of pregnancy, High Court observed that the divorce between the parties became effective immediately on the birth of the child.

Malick Shahbaz Ahmad for Petitioner.

Naeem Shahzad for Respondents Nos. 3 and 4.

Date of hearing: 1st December, 2021.

JUDGMENT

FAISAL ZAMAN KHAN, J.---Through this petition, judgments and decrees dated 03.07.2018 and 07.11.2018 passed by respondents Nos. 2 and 1, respectively have been assailed. By virtue of the former judgment, a suit for recovery of maintenance allowance and dower filed by respondents Nos. 3 and 4 against petitioner has been decreed only to the extent of recovery of maintenance allowance and through the latter, the appeal filed by said respondents has been accepted and a decree for recovery of dower has also been passed.

2. Facts giving rise to the present petition are that marriage was solemnized between petitioner and respondent No.3 on 07.09.2016 and out of this wedlock, respondent No.4 was born. Due to altercation between the spouses, a suit for recovery of maintenance allowance and dower was instituted by respondents Nos. 3 and 4 against petitioner in which the latter filed his written statement. Out of divergent pleadings of the parties, as many as 04 issues were framed; evidence pro and contra was led, whereafter, through judgment and decree dated 03.07.2018, the suit was decreed to the extent of recovery of maintenance allowance, however, the relief of recovery of dower was refused. Feeling aggrieved, both the parties preferred their respective appeals which were decided through consolidated judgments and decrees dated 07.11.2018. The appeal filed by respondents Nos. 3 and 4 was accepted whereby respondent No.3 was held entitled for recovery of dower whereas the appeal filed by petitioner was dismissed, therefore, this petition.

3. Learned counsel for the petitioner submits that the bone of contention between the parties is with regard to decree passed in favour of respondent No. 3 qua recovery of dower. He further submits that marital bond between the parties is still intact therefore the dower which was deferred in nature could not have been granted to respondent No.3.

4. Replying to the above, learned counsel for respondents Nos. 3 and 4 submits that in his written statement, petitioner has acknowledged that he has divorced respondent No.3. He has also drawn the attention of this Court towards Exh.P-2 which is copy of an FIR registered at the behest of petitioner in which he has also acknowledged that he has divorced respondent No.3. In the above backdrop, he asserts that respondent No.1 keeping in view the above stipulation rightly decreed the suit qua recovery of dower.

5. Arguments heard. Record perused.

6. The moot question which requires determination by this Court is as to whether respondent No.3 was entitled to recover the dower.

7. According to Exh.P-4 (which is copy of Nikahnama), in columns Nos. 13 and 14, it has been mentioned that total dower was fixed as Rs.500,000/- out of which Rs.5000/- was prompt which was paid at the time of marriage and the remaining amount (Rs.495,000/-) was deferred.

7(sic). While drawing a distinction between prompt and deferred dower, the Hon'ble Supreme Court of Pakistan in the judgment reported as Saadia Usman and another v. Muhammad Usman Iqbal Jadoon (2009 SCMR 1458) has held that prompt dower is paid on demand whereas the deferred dower is paid either on the dissolution of marriage or the death of husband. In the said judgment, the Honourable Apex Court has created an exception in cases of payment of deferred dower and it has been held that if some time frame is given in the Nikahnama with regard to the demand of deferred dower, then wife can claim the same before the dissolution of marriage or the death of husband.

8. Placing the afore-noted distinction in juxtaposition with the facts of present case, a perusal of Exh.P-4 would show that Rs.495,000/- was fixed as deferred dower and since there was no time frame given as to when the said dower can be claimed by respondent No.3, therefore, keeping in view the case of Sadia Usman (supra), the said dower could only be paid to respondent No.3 either at the culmination of marriage or the death of petitioner thus the reason given by respondent No.1 for granting decree is incorrect.

9. In the above circumstances, a perusal of the plaint would show that it was alleged that respondent No.3 has been divorced by the petitioner and in paragraph No.3 of his written statement, it was acknowledged by petitioner that he divorced respondent No.3. The said fact is further fortified from Exh.P-7 which is copy of FIR No.104/2018 dated 21.04.2018 registered under section 379, P.P.C. at Police Station Airport Sialkot wherein it has also been acknowledged by petitioner that he has sent notice of divorce to respondent No.3.

10. In view of the afore-referred admission made by petitioner, since he himself has acknowledged that he has divorced respondent No.3, therefore, keeping in view Article/Section/Para 290 of the Mohammedan Law, respondent No.3 is entitled to claim the deferred dower, hence, a decree has rightly been passed by respondent No.1 in favour of respondent No.3.

11. Great emphasis has been laid by learned counsel for the petitioner on the fact that marriage between the parties is still intact for the reason that a suit for restitution of conjugal rights was filed by petitioner which was decreed on the statement made by respondent No.3 and thereafter respondent No.3 gave birth to another daughter. The said assertion of the petitioner will be of no help for the reason that suit for restitution of conjugal rights was decreed on 19.02.2018 whereas the FIR (Exh.P-7) was registered on 21.04.2018 i.e. after passing of the decree for restitution of conjugal rights wherein it has been acknowledged by the petitioner that he has divorced respondent No.3 and since there is nothing on record wherefrom this could be established that notice of divorce sent by petitioner to respondent No. 3 was ever withdrawn. Moreover, when petitioner pronounced divorce and at that point in time respondent No. 3 was pregnant and the period of 90-days as contemplated in the Muslim Family Laws Ordinance, 1961 expired during the period of pregnancy, the divorce between the parties became effective immediately on the birth of the child.

12. For what has been discussed above, since the learned counsel for the petitioner has not been able to highlight any jurisdictional defect or procedural

impropriety in the impugned judgments and decrees passed by respondent No.1, therefore, no ground for interference is made out, as a sequel to which, this petition fails and the same is dismissed.

SA/M-90/L Petition dismissed.

;